Summary: The Legal Classification of the Armed Conflicts in Syria, Yemen and Libya

Louise Arimatsu (Chatham House) & Mohbuba Choudhury (UNHCR), Chatham House International Law Programme Paper 2014/01, March 2014

In one paragraph. The paper reports a March 2013 Chatham House workshop where international lawyers (including Arimatsu, Geiss, Hampson, Schmitt, Sivakumaran and Wilmshurst) and one country expert per state applied the law of armed conflict (LOAC/IHL) to the violence in **Syria, Yemen and Libya (2010–2013)**. It concludes that: in **Syria** a non-international armed conflict (NIAC) existed by **March 2012** at the latest; **Yemen** had **several parallel NIACs** from 2011; and **Libya** had a NIAC by **early March 2011** plus a separate international armed conflict (IAC) from the **NATO-led air strikes of 19 March 2011**. The most useful part for analysis is the list of unresolved questions: the **organization requirement** from *Tadic* repeatedly produced awkward results, and questions about recognition, the end of conflicts and their geographical scope remain open.

Background and method

The workshop (13–14 March 2013) chose these three cases because each raised specific legal questions. Country experts (Christopher Phillips – Syria; Saleem Haddad – Yemen; Sir Richard Dalton – Libya) explained the facts, and lawyers then assessed them using briefing packs (maps, lists of armed groups, chronologies, UN documents). The authors acknowledge limits: one expert per country, facts that were hard to verify during ongoing violence, and the risk that the lawyers' questions shaped the discussion. The analysis reflects events up to early 2013.

The legal framework

LOAC applies only if there is an armed conflict; otherwise international human rights law (IHRL) governs, which limits lethal force to what is strictly necessary (law enforcement). LOAC allows lethal force between belligerents but regulates how it is used. Classification therefore matters.

- **IAC** (Common Article 2): hostilities between two or more states, or occupation. Whether a minimum level of violence is needed is **contested** – the ICRC Commentary says any use of armed forces counts, but state practice suggests the threshold may be relatively high.
- **NIAC** (Common Article 3; *Tadic*): "protracted armed violence between governmental authorities and organized armed groups or between such groups". Two criteria: **intensity** and an **organized armed group (OAG)**. Riots, isolated and sporadic violence and internal disturbances are excluded (AP II, Art. 1(2)), even if the army is deployed to restore order.
- **Intensity indicators** (ICTY): seriousness and frequency of attacks; spread of violence over time and territory; control of territory; more government troops; types of weapons; mass displacement; UN Security Council involvement.
- **Organization indicators** (ICTY, *Limaj*): structure, internal rules, a spokesperson, orders and statements, headquarters, coordinated action, discipline, recruitment, training, weapons supply, uniforms, participation in negotiations. A conventional military unit is not required.
- **AP II conflicts**: between state forces and OAGs that control enough territory to carry out sustained and concerted military operations. AP II does not cover fighting between armed groups, and binds only states that are party to it.
- **"Internationalized" NIAC**: becomes an IAC if another state has **overall control** over an armed group (*Tadic* Appeals): more than money, weapons or training – a role in organizing, coordinating or planning its military actions. The threshold is high and the evidence must be compelling.

- **“Internalized” IAC**: an IAC can turn into a NIAC (Afghanistan, Iraq) when a new government that consents to foreign forces takes over. States that do not formally recognize governments apply **effectiveness**. Milanovic adds three conditions: the old regime has lost control with little chance of regaining it; the new regime controls much of the country and is broadly representative; and it is widely recognized internationally.

Syria

Facts

Peaceful protests began in March 2011 (Damascus, Dar’a) asking for reform. Security forces and the Shabbiha militia used live fire, snipers, tanks and sieges; by August 2011 the peaceful protests had largely ended. Diplomacy failed (Russian/Chinese vetoes, Arab League plan, Annan plan, UN monitoring mission suspended June 2012). Estimated deaths rose from about 1,000 combat deaths in the first year to around 60,000 by December 2012; over 2 million people were displaced and 670,000 became refugees.

The **Free Syrian Army (FSA)** was announced by defectors in July 2011, but its leadership in Turkey only coordinated and handled outreach – local groups used the FSA flag without taking its orders. In **March 2012** it set up a Joint Military Command and **provincial military councils** (Homs, Hama, Idlib, Dar’a, Damascus) that took operational decisions, launched coordinated offensives, controlled territory north of Aleppo, and recruited and trained fighters. Jabhat al-Nusra fought separately. Foreign support: Russia and Iran (plus Hezbollah and Iraqi Shi’a militias) for the government; Turkey, Jordan, Qatar, Saudi Arabia and Western non-lethal aid for the opposition.

How others assessed it

- UN Commission of Inquiry: no IHL in its Nov. 2011 and Feb. 2012 reports (intensity possibly met, but FSA organization could not be verified); in Aug. 2012 it found a NIAC had existed **since February 2012**.
- ICRC: implicitly applied IHL in May 2012; expressly called it a NIAC in July 2012. Human Rights Watch: a NIAC by April 2012. Assad himself said Syria was “in a state of war” (June 2012).

Workshop conclusions

- **Intensity** was arguably reached by late spring/early summer 2011 (tanks, shelling, army deployment, displacement) – but without an organized opponent there was no armed conflict.
- **A NIAC existed at least by March 2012**, once the FSA-affiliated groups had command structures, coordinated operations, recruitment, training and a steady weapons supply. Syria is not party to AP II, so Common Article 3 and customary law apply.
- **Not internationalized**: foreign support (possibly a breach of the rule against intervention) fell short of overall control by any state. Pro-government foreign militias do not change the classification either.
- **Israeli air strikes** (January and May 2013) on weapons convoys raise the question of a separate Syria–Israel IAC; the experts took no position, but discussed whether an intention to wage war (*animus belligerendi*) is needed.
- **Recognition**: states recognized the opposition coalition as the “legitimate representative of the Syrian people”, not as the government. Legal recognition requires effective control of territory and the state machinery, which the opposition lacked.

Yemen

Facts

The 2011 protests against President Saleh came on top of older violence: the north–south divide and the Southern Movement (Harak); six wars (2004–10) with the **Houthis** in Sa'ada, with Saudi air strikes in 2009–10; tribal politics with no clear command structures; and **Al-Qaeda in the Arabian Peninsula (AQAP)**, targeted by US strikes. After the 18 March 2011 killing of 53 protesters, General Ali Mohsen defected with the First Armoured Division. From **May 2011** loyalist forces fought al-Ahmar tribal militias and defectors in Sana'a and Taiz with artillery and air power. The Houthis took Sa'ada (March 2011) and expanded; **Ansar al-Shari'a (AAS)**, linked to AQAP, seized Ja'ar and Zinjibar and ran Islamic "emirates". The Gulf Cooperation Council deal led to Saleh's exit and Hadi's election (February 2012); AQAP suicide attacks followed, and a May 2012 offensive backed by the US retook Abyan.

Workshop conclusions

Conflict	Start	Law applicable
Government v. Houthis	March 2011 (OAG with effective command; ousted the state from Sa'ada, governs, recruits, negotiates)	Common Art. 3 + **AP II** (Yemen is a party; Houthis control territory)
Houthis v. Salafi / Islah-linked tribal groups	Possibly 2012	Common Art. 3, if the groups were organized enough
Government / Saleh loyalists v. Ali Mohsen units and al-Ahmar militias	May 2011 (before that, protests were internal disturbances under human rights law)	Common Art. 3 + custom (one or two NIACs – left open)
Government (with US support) v. AAS	March 2011 (coordinated attacks, territorial control, governance, negotiated release of captured soldiers)	**AP II** for Yemen; Common Art. 3 only for the US (not an AP II party)
Government / US v. AQAP	Uncertain – depends on whether AQAP is separate from AAS and whether it is a conflict or counter-terrorism	Common Art. 3 if a NIAC; the experts took no view

- **None internationalized**: possible Iranian money and weapons to the Houthis/Harak fell short of overall control. US strikes were made with Yemeni government consent, so there was no sovereignty issue – and the type of conflict depends on who the parties are, not where the fighting happens.
- Neither the Yemeni government nor the UN human rights office (OHCHR) acknowledged an armed conflict, but Security Council Resolution 2014 (2011) referred to IHL, and the ICRC and US State Department recognized several internal conflicts.

Libya

Facts

Protests began in Benghazi on 16 February 2011 after the arrest of lawyer Fathi Terbil; security forces used live fire and the army base was overrun on 20 February. By 24 February the regime had lost Benghazi, Tobruk and Misrata, and protesters seized abandoned weapons. Resolution 1970 (26 Feb.) imposed an arms embargo and sanctions, called for respect for IHL and referred Libya to the International Criminal Court. The rebel National Transitional Council (NTC) formed on 3 March. Government counter-offensives in early March used tanks, artillery and air power. Resolution 1973 (17 March) authorized "all necessary measures" to protect civilians; air strikes began on 19 March, NATO took command on 31 March, Tripoli fell in August, and Gaddafi was killed on 20 October. The rebels were scattered local brigades ("kataeb") with no central command; some (Benghazi, Misrata, Zintan) became well organized, helped by British, French and Qatari special forces.

How others assessed it

- The UN Commission of Inquiry said a NIAC existed **by about 24 February 2011**; the ICRC said so on 10 March; the ICC Prosecutor said "since the end of February"; a civil-society fact-finding mission said around 10 March, plus an IAC from 19 March.

Workshop conclusions

- The experts **disagreed with the Commission's February date**: the opposition was then spontaneous and fragmented, without a command structure. **By early March 2011** the armed groups could fight off government offensives in coordinated ways, and the fighting was intense: **a NIAC existed**, governed by Common Article 3 and **AP II by about 10 March**.
- Unusually, AP II applied **almost immediately**, because the government lost huge areas of territory within days rather than gradually.
- **A separate IAC** began on 19 March 2011 between Libya and the intervening states (the UK, France and the US, then 15 more under NATO).
- **Internationalization?** Equipment and money from Qatar, France and others were not enough; whether any state gained overall control (special forces on the ground, coordination of air strikes) cannot be determined without more facts.
- **Internalization?** Commentators agree the IAC became a NIAC after Gaddafi fell and the NTC took over, but the criteria are unclear: is recognition enough? Does each state's recognition (e.g. France's on 10 March) change the conflict only for that state? What if coalition partners take different positions?

Open legal questions raised by the workshop

- **Is the NIAC threshold too high?** In Syria in 2011 the state used military-level force against its population, yet IHL did not apply because no organized group fought back – the violence of the state alone does not count.
- **How much organization is enough?** The FSA forced government retreats in late 2011 but was not considered "organized" until 2012. A single unified command is evidence but not required; perhaps the capacity to challenge the state, or "**collective coordination**" (as with the Kosovo Liberation Army in *Haradinaj*), is a better indicator.
- **Combining groups:** can the violence of several loosely linked or uncoordinated groups be added together to reach the intensity threshold? Using a "common cause" was rejected by some experts because it would bring motive into the test and could justify a global battlefield.
- **Groups whose members keep changing** (Yemen's tribes): does an organized armed group need a stable core membership?
- **Missing facts:** if it cannot be established whether a conflict exists, which law applies? Human rights law assumes the state controls the territory – should LOAC be the default where it does not? Can organization be inferred from the harm a group causes?
- **End of conflicts:** do the *Tadic* criteria also decide when a conflict ends? What happens when violence falls below the threshold or a group stops functioning?
- **Geography:** the majority view was that LOAC applies throughout the state's territory, not only in combat zones – but does it follow individual fighters (relevant to US targeted killings)?
- **Security Council:** can it effectively declare a NIAC (Resolution 1970) even when the *Tadic* criteria are not met?
- **Further research** is needed on intensity (including whether it should matter for IACs), on who counts as a "party", and on recognition.

Key takeaways

- **Classification is factual**: governments routinely deny that a NIAC exists, but they are bound by LOAC once the criteria are met.
- **Intensity was rarely the problem; organization was.** In all three countries the organization of the opposition decided when IHL began to apply.
- **Start dates:** Syria – NIAC by March 2012 (Commission of Inquiry: February 2012); Yemen – NIACs from March and May 2011; Libya – NIAC by early March 2011 (Commission of Inquiry: around 24 February) and an IAC from 19 March 2011.
- **One state can face several parallel conflicts**: Yemen had at least four, and Libya had a NIAC and an IAC side by side.
- **AP II** applied to the Houthi and AAS conflicts in Yemen and to Libya because the rebels controlled territory; it did not apply in Syria, which is not a party.
- **No conflict was found to be internationalized**: funding, arming, training and even some operational support by foreign states did not reach the high "overall control" threshold.
- **Consent matters for foreign involvement**: US strikes in Yemen with government consent did not create an IAC; NATO strikes against the Libyan government did.
- **Political recognition is not legal recognition**: calling an opposition the "legitimate representative of the people" does not make it the government, and how recognition affects classification is unsettled.
- **The paper mainly identifies questions rather than answering them**, especially on the organization test, combining groups, the end of conflicts and geographical scope – useful for an essay on the limits of the *Tadic* criteria.